

**SUBSTITUTE FOR
SENATE BILL NO. 885**

A bill to create a parent and child legal representation commission and an office of parent and child legal representation; to prescribe the commission's and office's powers and duties; and to provide for appropriations.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1. This act may be cited as the "parent and child legal
2 representation act".

3 Sec. 2. As used in this act:

4 (a) "Commission" means the parent and child legal
5 representation commission created in section 3.

6 (b) "Consumer Price Index" means the most comprehensive index
7 of consumer prices available for the Detroit-Warren-Dearborn area
8 from the Bureau of Labor Statistics of the United States Department



1 of Labor.

2 (c) "Office" means the office of parent and child legal
3 representation created in section 5.

4 Sec. 3. (1) The parent and child legal representation
5 commission is created as an autonomous entity in the department of
6 licensing and regulatory affairs.

7 (2) The commission must consist of the following members
8 appointed by the governor:

9 (a) One individual from a list of 3 individuals submitted by
10 the senate majority leader.

11 (b) One individual from a list of 3 individuals submitted by
12 the speaker of the house of representatives.

13 (c) Two individuals from a list of 4 individuals submitted by
14 the supreme court.

15 (d) The director of the state budget office or the director's
16 designated representative.

17 (e) The director of the department of health and human
18 services or the director's designated representative.

19 (f) One individual who is an attorney licensed to practice law
20 in this state and who has experience working as a prosecuting
21 attorney from a list of 3 individuals submitted by the Prosecuting
22 Attorneys Association of Michigan.

23 (g) One individual recommended by the Children's Law Section
24 of the State Bar of Michigan who is an attorney licensed to
25 practice law in this state and who has experience as a parent
26 attorney.

27 (h) One individual recommended by the Children's Law Section
28 of the State Bar of Michigan who is an attorney licensed to
29 practice law in this state and who has experience as a child's



1 attorney.

2 (i) One individual recommended by the Children's Law Section
3 of the State Bar of Michigan who is an attorney licensed to
4 practice law in this state and who has experience as an appellate
5 attorney.

6 (j) One probate court judge from a list of 3 individuals
7 submitted by the Michigan Probate Judges Association.

8 (k) One circuit court judge from a list of 3 individuals
9 submitted by the Michigan Judges Association.

10 (l) One representative from a list of 3 individuals submitted
11 by the Michigan Association of Counties.

12 (m) One individual employed by or who represents a federally
13 recognized Indian tribe and who is an attorney licensed to practice
14 law in this state with experience in child welfare proceedings.

15 (n) One member of the general public to represent the
16 interests of individuals who have been impacted by the child
17 welfare system.

18 (3) The governor shall appoint the first members of the
19 commission not later than 90 days after the effective date of this
20 act.

21 (4) The governor shall appoint 5 of the first members to 1-
22 year terms, 5 of the first members to 2-year terms, and 5 of the
23 first members to 3-year terms. After the first appointments, the
24 term of a member of the commission is 4 years or until a successor
25 is appointed under subsection (2).

26 (5) If a vacancy occurs on the commission, the governor shall
27 appoint an individual to fill the vacancy for the balance of the
28 term.

29 (6) The governor may remove a member of the commission for



1 incompetence, dereliction of duty, malfeasance, misfeasance, or
2 nonfeasance in office, or any other good cause.

3 (7) The director of the department of licensing and regulatory
4 affairs shall call the first meeting of the commission. At the
5 first meeting, the commission shall elect a member as a chairperson
6 and may elect other officers that it considers necessary or
7 appropriate. The commission shall meet at least quarterly, or more
8 frequently at the call of the chairperson or at the request of the
9 majority of the members.

10 (8) A majority of the members of the commission constitutes a
11 quorum for transacting business. A vote in favor by the majority of
12 the members of the commission serving is required for any action of
13 the commission.

14 (9) The commission shall conduct its business in compliance
15 with the open meetings act, 1976 PA 267, MCL 15.261 to 15.275.

16 (10) A writing that is prepared, owned, used, possessed, or
17 retained by the commission in performing an official function is
18 subject to the freedom of information act, 1976 PA 442, MCL 15.231
19 to 15.246.

20 (11) A member of the commission is not entitled to
21 compensation for service on the commission, but the commission may
22 reimburse a member for actual and necessary expenses incurred in
23 serving.

24 Sec. 4. The commission shall do all of the following:

25 (a) Create standards of practice for attorneys eligible for
26 appointment by the office of parent and child legal representation.
27 The standards must include, but are not limited to:

28 (i) Establishing maximum caseloads to allow for quality
29 representation.



1 (ii) Establishing minimum training requirements to improve
2 quality of legal representation for indigent children and parents
3 in child welfare cases and appeals.

4 (iii) Defining legal representation and nonlegal advocacy tasks
5 that are eligible for payment by the office.

6 (iv) Establishing minimum standards for frequency and format of
7 attempted contact with clients.

8 (b) Once the initial proposed standards are generated, the
9 commission shall invite public comment on the standards and hold a
10 public hearing to consider public comment.

11 (c) Standards will only become effective when sufficient
12 funding is appropriated, as determined by the commission.

13 (d) Review the standards created under subdivision (a)
14 periodically. Any proposed revisions to the standards must undergo
15 the public comment process required for the initial standards and
16 are not effective until sufficient funding is appropriated.

17 (e) Establish a system to facilitate the appointment of
18 counsel for indigent parents and children in child welfare cases
19 that includes both of the following:

20 (i) The opportunity for attorneys, firms, and organizations to
21 apply for placement on a roster of attorneys eligible for
22 appointment by the office.

23 (ii) Incorporate the location of available attorneys and allow
24 flexibility to accommodate varying needs across court systems.

25 (f) Establish standards for determination of indigency that
26 include both of the following:

27 (i) That an individual is indigent when they are unable,
28 without substantial financial hardship to the individual or the
29 individual's dependents, to obtain competent, qualified legal



1 representation. Factors that the court may consider include, but
2 are not limited to, income or funds from employment or any other
3 source, including personal public assistance, to which the
4 respondent is entitled, property owned by the respondent or in
5 which the individual has an economic interest, outstanding
6 obligations, the number and ages of the individual's dependents,
7 employment and job training history, and the individual's level of
8 education.

9 (ii) A rebuttable presumption of substantial financial hardship
10 if the individual is any of the following:

11 (A) Receiving personal public assistance including food
12 assistance program, temporary assistance for needy families,
13 Medicaid, or disability insurance, resides in public housing, or
14 earns an income that is less than 140% of the federal poverty
15 guideline.

16 (B) Under the age of 18.

17 (C) Currently serving a sentence in a correctional
18 institution.

19 (D) Currently receiving residential treatment in a mental
20 health or substance abuse facility.

21 (g) Establish a standardized rate of pay for appointed counsel
22 and a process for payment of counsel that includes both of the
23 following requirements:

24 (i) Local funding units shall continue to contribute their
25 local contribution equal to the local funding unit's average
26 contribution to legal representation for child welfare cases over
27 the prior 3 years. The local contribution must be adjusted annually
28 by the rate of inflation as established by the Consumer Price
29 Index. Local funding units must not be required to contribute more



1 than the determined local contribution.

2 (ii) A mechanism that allows the commission to secure
3 additional funding from legislative appropriations.

4 (h) Establish a process to provide experts to assist attorneys
5 in their cases. The process must include receiving, evaluating, and
6 approving requests for expert assistance, connecting attorneys with
7 necessary experts, and providing funding necessary to retain expert
8 assistance.

9 (i) Establish a process to provide ancillary legal services to
10 clients that might address underlying issues in their child
11 protective proceeding. The process must include receiving,
12 evaluating, and approving requests for ancillary legal services,
13 connecting attorneys with necessary supports, and providing funding
14 necessary to retain ancillary legal services.

15 (j) Hire an executive director for the office. The executive
16 director must be an attorney.

17 (k) Determine appropriate staff for the office consistent with
18 annual appropriations.

19 (l) Identify and encourage best practices for delivering
20 effective assistance of counsel to children and parents in child
21 protective proceedings.

22 Sec. 5. (1) The office of parent and child legal
23 representation is created within the department of licensing and
24 regulatory affairs.

25 (2) The purpose of the office is to do all of the following:

26 (a) Implement and oversee the system to facilitate the
27 appointment of counsel at the trial and appellate levels for
28 indigent parents and children in child protective proceedings once
29 established by the commission.



1 (b) Implement and oversee the process for payment of counsel
2 once established by the commission.

3 (c) Implement and oversee the process for providing experts to
4 assist attorneys in cases once established by the commission.

5 (d) Implement and oversee the process for providing ancillary
6 legal services once established by the commission.

7 (e) Provide technical assistance to support compliance with
8 standards and best practices, once determined by commission.

9 (f) Establish a process for routine performance reviews of
10 attorneys on the roster to determine continued eligibility to serve
11 on the roster. The process must include a mechanism for receipt and
12 review of complaints related to an attorney's actions on appointed
13 cases.

14 (g) As approved by the commission, collect data regarding
15 child protective legal representation statewide and provide an
16 annual report to the governor, legislature, and supreme court.

17 (3) The office may receive grants from governmental and
18 nongovernmental sources.

19 Enacting section 1. This act takes effect 90 days after the
20 date it is enacted into law.